

Court No. - 3

Case :- WRIT - C No. - 31951 of 2023

Petitioner :- M/S Smilan Agro Industries And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Siddhartha Varma,J.

Hon'ble Manoj Bajaj,J.

Place this petition as fresh on 22.9.2023 along with Writ - C No. 10366 of 2021 (Sanjay Kumar Rai v. State of U.P and 5 others).

Order Date :- 19.9.2023

PK

(Manoj Bajaj,J.) (Siddhartha Varma,J.)

Court No. - 3

Case :- WRIT - C No. - 31951 of 2023

Petitioner :- M/S Smilan Agro Industries And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Siddhartha Varma, J.

Hon'ble Manoj Bajaj, J.

Learned counsel for the Electricity Department, along with the instructions, has handed over the order dated 19.1.2021 which according to him, forms the basis of the final assessment dated 20.1.2021. The instructions be kept on record.

Learned counsel for the petitioners be supplied a copy of the order dated 19.1.2021.

Place this case on 17.11.2023 as fresh.

Order Date :- 18.10.2023

GS

(Manoj Bajaj, J.) (Siddhartha Varma, J.)

Court No. - 32

Case :- WRIT - C No. - 31951 of 2023

Petitioner :- M/S Smilan Agro Industries And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C., Chetan Chatterjee

Hon'ble Salil Kumar Rai, J.

Hon'ble Surendra Singh-I, J.

The present petition has been filed challenging the recovery citation dated 17.6.2023 issued by the Tehsildar, Tehsil Burhanpur, District Azamgarh on a recovery certificate issued by the Executive Engineer (Assessing Officer), Electricity Distribution Division - VI, Purvanchal Vidyut Vitran Nigam Ltd., Kaptanganj, Azamgarh, Uttar Pradesh, i.e., respondent no. 5.

The recovery citation has been issued on a document dated 20.1.2021 signed by the Executive Engineer and referred as Final Assessment of the electricity charges due against the petitioners.

It has been argued by the counsel for the petitioners that no provisional assessment has been made and the document dated 20.1.2021 is not even a provisional assessment and, in any case, no final assessment order has been passed enabling the petitioners to file an appeal against the alleged dues. It has been further argued that the amount stated to be due against the petitioners in the document dated 20.1.2021 is recorded on the basis of the final assessment order relating to one Sanjay Kumar Rai who was not a partner of the firm, namely, M/s SMilan Agro Industries and, therefore, not a consumer of the electricity connection. The order was under challenge in Writ - C No. 10366 of 2021 and was stayed by this Court vide its order dated 26.3.2021.

It has been further contended that the objections of the petitioners to the document dated 20.1.2021 has also not been considered by the Executive Engineer as would be evident from his letter dated 15.1.2022 annexed as Annexure No. - 11 to the writ petition in which the Executive Engineer has expressed his ability to consider the objections of the petitioners because of the pendency of Writ - C No. 10366 of 2021. It has been further contended that without considering the objections of the petitioners and without passing a final assessment order, no recovery certificate can be sent to the Collector under the Uttar Pradesh Government Electrical Undertakings (Dues Recovery) Act, 1958 and consequently, any

recovery citation issued on the basis of such recovery certificate is without jurisdiction.

At this stage, it would be relevant to note that the instructions submitted on behalf of respondent nos. 4 and 5 by Sri Chetan Chatterjee, Advocate which are part of the records of the case also do not indicate that any final assessment order has been passed though, there are certain official notings on the records regarding the dues of the petitioners.

It has been contended by the counsel for the petitioners that such notings cannot be considered as final assessment orders.

The matter requires consideration.

The Standing Counsel representing respondent nos. 1 to 3 and Sri Chetan Chatterjee, Advocate representing respondent nos. 4 and 5 pray for and are granted three weeks' time to file their counter affidavit. The petitioners shall have two weeks thereafter to file their rejoinder affidavit.

List on ***4th January, 2024.***

Meanwhile, the recovery citation dated 17.6.2023 issued by the Tehsildar, Tehsil Burhanpur, District Azamgarh shall remain stayed.

However, the Purvanchal Vidyut Vitran Nigam Ltd., Kaptanganj, Azamgarh, Uttar Pradesh shall be at liberty to institute fresh proceedings in accordance with law to recover the dues of the petitioners and after passing a final assessment order as stipulated in the Electricity Supply Code, 2005.

Order Date :- 24.11.2023
Satyam

Court No. - 3

Case :- WRIT - C No. - 31951 of 2023

Petitioner :- M/S Smilan Agro Industries And 2 Others

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Bidhan Chandra Rai

Counsel for Respondent :- C.S.C.,Chetan Chatterjee

Hon'ble Shekhar B. Saraf,J.

Hon'ble Praveen Kumar Giri,J.

Sri Vidhan Chandra Rai, learned counsel for the petitioners, submits that the writ petition has become infructuous. Accordingly, no further order needs to be passed.

In light of the submissions made, let the petition be consigned to records and the same be disposed of accordingly.

Sri Chetan Chatterjee, learned counsel for the respondent, is present.

Order Date :- 21.8.2025

K.K. Maurya

(Praveen Kumar Giri, J.) (Shekhar B. Saraf, J.)